

ELIZABETH II



1974 CHAPTER xxv

An Act to confer powers on the Thurrock Borough Council for the control of the brown tail moth; and for other purposes. [31st July 1974]

WHEREAS—

(1) The district of Thurrock in the non-metropolitan county of Essex (in this Act referred to as “ the district ”) is, in accordance with the Local Government Act 1972, a district under the local government and administration of the Thurrock Borough Council (in this Act referred to as “ the Council ”):

(2) By the Essex County Council (Canvey Island Approaches, etc.) Act 1967 provisions were enacted for the control of infestation of the brown tail moth (*Euproctis Chrysorrhoea*) in an area adjoining the district and it is expedient that similar powers should be conferred upon the Council and that the other provisions in this Act with respect thereto should be enacted:

(3) The purposes of this Act cannot be effected without the authority of Parliament:

1972 c. 70.

(4) In relation to the promotion of the Bill for this Act the requirements of section 239 of the Local Government Act 1972 have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1. This Act may be cited as the Thurrock Borough Council Act 1974.

Interpretation.

2. In this Act, unless the context otherwise requires—

1936 c. 49.

“ the Act of 1936 ” means the Public Health Act 1936;

“ the Council ” means the Thurrock Borough Council;

“ the district ” means the district of Thurrock;

“ moth ” means the brown tail moth (*Euproctis Chrysorrhoea*) and includes the eggs, caterpillars and webs or nests thereof.

Control of
brown tail
moth.

3.—(1) If it appears to the Council that steps should be taken for the destruction of moth on any land in the district, they may serve on the occupier of the land a notice requiring him to take such reasonable steps for the destruction of moth as may be specified in the notice.

(2) The provisions of Part XII of the Act of 1936 with respect to appeals against, and the enforcement of, notices requiring the execution of works shall apply in relation to any notice given under this section, and shall so apply as if this section were contained in that Act and the taking of steps for the destruction of moth were the execution of works.

(3) In the application of section 290 of the Act of 1936 in relation to any such notice—

(a) subsection (3) (e) and (f) and subsection (5) shall be omitted; and

(b) subsection (6) shall have effect as if for the words from “ a fine not exceeding five pounds ” to the end of the subsection there were substituted the words “ a fine not exceeding £50 ”;

and among the grounds on which an appeal may be brought under subsection (3) shall be that the taking of the steps required by the notice would be ineffective for the purpose of destruction of moth in the area of the district in which the land in question is situated or that, having regard to the expense of taking any steps required by the notice, the Council have unreasonably refused to assist in taking those steps or to contribute the whole or part of the cost thereof.

4. The sections of the Act of 1936 mentioned in the Schedule to this Act shall have effect as if references therein to that Act included a reference to this Act and as if the expressions “local authority” and “council” included the Council.

Application of certain provisions of Public Health Act 1936.

5.—(1) The costs, charges and expenses preliminary to, and of and incidental to, the preparing, applying for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the Council.

Costs of Act.

(2) The Council may borrow without the consent of any sanctioning authority, such sums as may be necessary for paying such costs, charges and expenses as aforesaid and subject to the provisions of this subsection, Schedule 13 of the Local Government Act 1972 shall have effect as if money borrowed under this subsection were borrowed under that Schedule.

(3) The Council shall repay sums borrowed under this section within ten years from the date of borrowing.

Section 4.

SCHEDULE

SECTIONS OF ACT OF 1936 APPLIED

Section	Marginal note
275	Power of local authority to execute certain work on behalf of owners or occupiers.
277	Power of councils to require information as to ownership of premises.
283	Notices to be in writing; forms of notices, etc.
291	Certain expenses recoverable from owners to be a charge on the premises: Power to order payment by instalments.
292	Power to make a charge in respect of establishment expenses.
293	Recovery of expenses, etc.
294	Limitation of liability of certain owners.
295	Power of local authority to grant charging orders.
296	Summary proceedings for offences.
299	Inclusion of several sums in one complaint, etc.
300	Appeals and applications to courts of summary jurisdiction.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.
1925 c. 22.	329 Saving for certain provisions of the Land Charges Act 1925.

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